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Assignment 4

Professional Practices in IT

Muhammad Athar Abbas
SP25 - BSE - 082
Section A

Data Protection Act of Pakistan

Introduction:

In today's digital world protecting personal information is very important. Draft of the Personal Data Protection Bill, 2023 was created by the Ministry of Information Technology & Communication. The main goal of this bill is to protect the right to privacy which is a fundamental right given to every citizen in the constitution of Pakistan.

Who does this Law apply to?

The bill has a wide scope. It applies to any "Data Controller" or "Data Processor" who is processing data. It doesn't matter if they are strictly inside Pakistan or not, as long as:

- They are established or registered in Pakistan.
- They are outside Pakistan but are processing data related to commercial activities or profiling people inside Pakistan.
- They are in a place where Pakistani law applies under international law.

Important Legal Definitions:

Some aspects of data and privacy is defined as follows in this act.

- **Personal Data:** This is any information

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that relates to a person who can be identified from it.

- **Sensitive Personal Data**: This is more serious data like financial info, health records, religious beliefs, political affiliations and biometrics.
- **Data Controller**: The person or government body that has authority to decide how and why personal is collected.
- **Data Processor**: Someone who processes that data on behalf of the controller.
- **Consent**: It means a "freely given, specific, informed and unambiguous indication" that the person agrees to have their data processed.

Responsibilities of Data Handlers

Under this act data handlers or data processors have several duties:

- **Getting Consent**: Data Processor cannot process anyone's Data without seeking their consent first. This consent has to be free and specific. The person also has the right to withdraw their consent at any time.

- **Transparency**: IT Professionals must be honest with users. The data controller must give a written notice (which can be digital) to the person. This notice must explain

- What data is being collected.
- The legal reason for processing it.
- How long the data will be kept
- Their rights as data subjects.

- **Data security**: Security is a major requirement. The bill says that data controllers and processors must take "practical measures" to protect data from loss, misuse or unauthorized access. This includes physical security and cyber

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the reliability of the staff who access the data.

- **Reporting Data Breaches:** If there's a security breach the data controller must tell the commission and affected people within 72 hours. If they are late, they have to provide a valid reason.

Rights of the People (Data Subjects): The bill gives regular people several rights over their own information:

- **Right to Access:** They can ask to see what data is being kept about them.
- **Right to Correction:** If the data is wrong they can ask for it to be fixed.
- **Right to Erasure:** Users can ask for their data to be deleted.
- **Right to Data Portability:** They can ask to have their data moved to another system.

The National Commission for Personal Data Protection (NCPDP):

The Act establishes a commission called the NCPDP. This body is responsible for:

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- Receiving complaints from people about data violations.
- Creating awareness about data rights
- Punishing those who don't follow the law

Conclusion:

In conclusion, the Draft of Personal Data Protection Bill, 2023, is an important step for publisher's digital economy. Data Processor or Controllers can't simply do whatever they want with the data. They have to follow the strict rules about consent, security and transparency. This will help build trust online and ensure that technology is used ethically.
